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File No.: EXP202212299

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 18, 2022. The complaint is directed against the CULTURE DEPARTMENT OF LA RIOJA with NIF S26330011 (hereinafter, CULTURE DEPARTMENT). The reasons on which the complaint is based are as follows:

The complainant states that the facts analyzed in the context of file EXP202205687 related to the recording of images, via mobile phone, of broadcasts from the video surveillance system of the MUSEO DE LA RIOJA by personnel of the complained party, have occurred again, by another guard of the complained entity, having received the complainant, on October 18, 2022, a new video from the museum's video surveillance system, which demonstrates the lack of adoption of corrective measures, as indicated in the context of file EXP202205687.

Along with the notification, images and a non-operational link to the video are provided:

- 3 images of what appears to be the screen of the video surveillance system at the museum entrance and one image of what appears to be a video, also of the entrance to the MUSEO DE LA RIOJA.
- A copy of the document submitted to the Central Unit of Private Security of Logroño requesting that the complainant be summoned to provide evidence of the disseminated video (10/17/2022).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the CULTURE DEPARTMENT for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on November 21, 2022, as noted in the acknowledgment of receipt in the file.

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On December 23, 2022, a response was received by this Agency indicating that

- The responsible party for the video surveillance system is the Department of Finance and Public Administration of the Government of La Rioja.
- CLECE SEGURIDAD S.A. is the data processor and their contract ends on December 21, 2022.
- They have 36 operational cameras.
- The sign indicating the video surveillance area refers to repealed legislation.
- The monitors displaying the camera images are located near the detection arch, and visitors can see the images on the monitors.
- Attached is the record of personnel authorized to view images.
- Regarding the reported incident, they respond that:
 - o CLECE SEGURIDAD will cease providing the service on 12/31/2022.
 - o The 7 guards are substituted personnel and will continue providing the service from that date.
- Only the museum manager can access the recordings, although the security personnel know the passwords and could access them.
- The guards are already aware that none can access the recordings pending the Data Controller establishing the password that only the authorized person(s) should know.

THIRD: On January 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary

investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On March 10, 2023, the complainant was requested to provide additional information regarding the complaint:

- Accreditation of the transmission via WhatsApp of the disseminated video, indicating the phone number from which it was sent and the recipient or group of recipients.
- The disseminated video, as access has not been granted due to the expiration of the download link. The postal notification of 03/10/2023, sent to the address ***ADDRESS.1, was returned due to incorrect address.

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Due to the impossibility of sending the postal notification, on March 31, 2023, the claimant is electronically notified, with the result of the notification having expired.

On April 18, 2023, the claimant called the Agency to inquire about the electronic notification, stating that she had no means of accessing said notification and requested that (XX) be indicated in her postal address.

On April 19, 2023, the postal notification is reiterated with the claimant's indications, which was received on May 3, 2023.

On May 15, 2023, the claimant requests from the Spanish Agency for Data Protection:

- The file of the complaint she filed against Ms. B.B.B., her appeal for reconsideration.
- That communications from the agency be sent to the address ***ADDRESS.2.
- The measures taken regarding the complaint about the disclosure of images by the Agency and the company CLECE SEGURIDAD, S.A.
- Confirmation of the response to the appeal for reconsideration.
- She requests that if no measures have been taken, the same severity be applied as in an identical case, attaching a previous complaint and appeal. She attaches an image of a link to the website ***URL.1., which contains news of a €3,000 sanction from the Spanish Agency for Data Protection against the company Grupo de Seguridad y Control Global.
- She attaches a copy of the documents previously sent to this agency and processed in file EXP202205687.

This response from the claimant has nothing to do with the request for additional information dated April 19, 2023.

On June 8, 2023, a new request for information is sent to the claimant, explaining that the evidence of the disclosure of video and images available to this Agency is very limited, and therefore, to continue with the investigation, it is necessary to have:

- Accreditation of the transmission via WhatsApp of the disclosed video, indicating the phone number from which it was sent and the recipient or group of recipients.
- The disseminated video (Access has not been possible, as the download link has expired).

On June 26, 2023, the claimant receives the notification.

As of today, no additional information regarding this file has been received by this Agency from the claimant.

On August 28, 2023, a request is made to the Technical General Secretariat of the Ministry of Finance and Public Administration of the Government of La Rioja and to the Delegate of Data Protection for information about the video surveillance system of the Museum of La Rioja as a possible Data Controller.

On September 13, 2023, a response is received from the Director General of Culture of the Ministry of Culture, Tourism, Sports, and Youth of the Government of La Rioja, indicating:

1. The responsible party for the installation is the General Directorate of Culture, which belongs to the

Ministry of Culture, Tourism, Sports, and Youth of the Government of La Rioja with NIF S26330011.
Phone number ***PHONE.1.

2. Photographs of the signs (one on each floor) that warn of the existence of a video-monitored area are provided, and all the signs are the same, so only one is attached. It is attached in a compressed folder.

3. The security company managing the video surveillance system is GRUPO CONTROL EMPRESA SEGURIDAD S.A. The bidding and award documents, as well as the Framework Agreement for surveillance and security services for the public sector of the Autonomous Community of La Rioja, are included as Annexes.

4. The number of cameras installed in the museum is 40. Photographs of all devices are included in a compressed folder. A photograph of the two monitors displaying the images (5 photographs) is also attached in the folder. None of the cameras record or allow viewing of adjacent land or the interior of homes, or any other private or reserved space, nor of public roads.

5. The surveillance system records images, and the retention period for these is one month.

6. and 7. The number of video surveillance cameras is 40, but currently, 32 are operational, and 8 are installed but not functioning correctly due to various technical problems; the installation is not complete, and the awarded company still needs to come to activate the remaining 8. A responsible declaration is provided, listing the cameras that do not emit images.

8. The monitors displaying the images are accessible only from the assigned workstation for the personnel performing the surveillance and security service of the museum; photographs are provided in the compressed folder (5 photographs).

9. Measures adopted to ensure that only authorized personnel access the images:

- To ensure that the monitors are only accessible to authorized persons, a 1500x900mm colorless methacrylate screen has been installed at the workstation of the security personnel to obstruct the view of the monitors. (A photograph is attached)

- On the other hand, access to the recordings of the images can only be performed by the security guards, who have a key, without which they cannot be viewed.

- Finally, to reinforce security, instructions have been sent to the awarded company of the museum's video surveillance contract for the preparation of an Action Protocol and the

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implementation of specific training for security personnel regarding data protection. (attached instruction)

The aforementioned protocolization must contain, among other things, the obligation to ensure traceability regarding access to recorded images, including the date, time, circumstances, and person accessing them, as well as immediate communication of such access to the General Director of Culture.

Attached:

Award to Grupo Control

Specific clauses – Tender Document

Tender document for the Museum of La Rioja

Instruction to the person in charge of Grupo Control

Photos of cameras Museum of La Rioja 01

Photos of cameras Museum of La Rioja 02

Photos of signs

Photos of monitors

FIFTH: On December 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party for the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established

in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the accused party.

Article 64.2.f) of the LPACAP - a provision of which the accused party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the accused party, and the sanction that could be imposed. Therefore, considering that the accused party has not made any allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

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PROVEN FACTS

FIRST: It is evidenced in the file that there is a translucent partition that does not prevent any person accessing the Museum from seeing the monitors displaying the cameras.

SECOND: It is proven in the file that the General Director of Culture sent instructions on September 12, 2023, to the person in charge of the security company and data processing for the preparation of a Protocol of action and the implementation of specific training for security personnel regarding data protection.

THIRD: It is not evidenced in the file that measures have been taken to ensure that only authorized personnel can access the recorded images, nor the access control to them.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Article 4 of the GDPR establishes that:

For the purposes of this Regulation, the following definitions shall apply:

1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

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Consequently, the physical image of a person, in accordance with Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined.

2) "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;

In points 7 and 8 of the same article, what is to be understood by the data controller and the data processor is specified. Thus, we have:

"7) 'data controller' or 'controller' is the natural or legal person, public authority, service or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States;

8) 'data processor' or 'processor' is the natural or legal person, public authority, service or other body that processes personal data on behalf of the data controller..."

In the present case, there is evidence of the processing of personal data, since the CULTURE DEPARTMENT carries out, among other processing activities, the collection, consultation, and use of images of individuals accessing the Museum, which it performs in its capacity as data controller, given that it determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

III

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct in accordance with Article 40 or to an approved certification mechanism in accordance with Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

From the images provided, it is evident that, while there is a translucent screen to prevent public access to the images captured by the security cameras, it only does so partially, meaning that anyone

accessing the Museum can see the monitors displaying the camera footage.

There is no evidence that there are currently measures in place to ensure that only authorized personnel access the recorded images; it is only noted that the General Director of Culture sent instructions on September 12, 2023, to the person responsible for the security company and data processor for the development of a Protocol of action and the provision of specific training to the security staff regarding data protection.

The facts presented constitute a violation of Article 32 of the GDPR, as the CULTURE DEPARTMENT did not have reasonable security measures in place at the time of the events, considering the potential risks estimated regarding access to the images from the Museum's video surveillance system.

IV

Classification of the violation of Article 32 of the GDPR

The aforementioned violation of Article 32 of the GDPR constitutes the commission of the violations classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

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"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover for the previous financial year, opting for the higher amount:

a) the obligations of the data controller and the data processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Violations" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute violations."

For the purposes of the statute of limitations, Article 73 "Violations considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, violations that constitute a substantial breach of the articles mentioned therein are considered serious and shall be subject to a two-year statute of limitations, particularly the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679." (...)

V

Sanction for the violation of Article 32 of the GDPR

Article 83 "General conditions for the imposition of administrative fines" of the GDPR paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Likewise, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides as follows:

"1. The regime established in this article shall apply to the processing for which they are responsible or to which they are processors: ...

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration...

2. When the controllers or processors listed in paragraph 1 commit any of the violations referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the violation and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the violation that has been committed, with the exception of

that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it is hierarchically subordinate, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Likewise, when the violations are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the Official State Gazette or the corresponding autonomous bulletin.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

VI

Article 58.2 of the GDPR establishes the corrective powers of a supervisory authority. Paragraph d) of the cited provision establishes that it may consist of “ordering the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe.”

The text of the resolution establishes what the violation committed was and the facts that led to the breach of data protection regulations, from which it is clearly inferred what measures are to be adopted, those aimed at ensuring that unauthorized third parties do not access the images from the video surveillance system.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: DECLARE that the CULTURE DEPARTMENT OF LA RIOJA, with NIF S2633001I, has infringed the provisions of Article 32 of the GDPR, an infringement classified under Article 83.4 of the GDPR.

SECOND: ORDER the CULTURE DEPARTMENT OF LA RIOJA, with NIF S2633001I, to, pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, provide evidence of having taken the appropriate measures to ensure that unauthorized third parties do not access the images from the video surveillance system.

THIRD: NOTIFY this resolution to the CULTURE DEPARTMENT OF LA RIOJA.

FOURTH: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for

Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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